

23NWCV03243 23NWCV03243

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Case Number: 23NWCV03243 Hearing Date: September 1, 2026 Dept: P

NAVARRO-RODRIGUEZ

v. GENERAL MOTORS LLC

CASE NO.: 23NWCV03243

HEARING: 09/01/2026 @ 9:30 AM

#10

TENTATIVE ORDER

Plaintiff Juan Navarro-Rodriguez's motion for attorney's fees is GRANTED in the amount of \$26,946.75.

Moving party to give notice.

Plaintiff Juan Navarro-Rodriguez (Plaintiff) moves for an award of attorney's fees.

Background

On October 11, 2023, Plaintiff filed this lemon law action against Defendant General Motors LLC (Defendant) and Does 1 through 50. The complaint alleges Plaintiff experienced defects and nonconformities to warrant with his 2022 Cadillac Escalade. (Complaint, ¶¶ 6, 11.) The complaint asserts five causes of action: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of express

warranty; and (5) breach of the implied warranty of merchantability.

On September 25, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On April 23, 2026, the Court granted Defendant's motion to tax costs in part and denied it in part. The Court taxed \$27.24 from the Memorandum of Costs.

Legal Standard

The Song-Beverly Consumer Warranty Act provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d).)

"Courts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof." (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247, citation omitted.) The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-49 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

Discussion

Plaintiff moves for attorney's fees in the amount of \$33,448.00.

Entitlement
to Fees

Plaintiff argues that he is the prevailing party pursuant to the parties' settlement agreement. Plaintiff signed Defendant's Section 998 Offer to Compromise on September 25, 2025, in which the parties agreed that Plaintiff is the prevailing party for purposes of this motion. (Cohen Decl., ¶ 10, Exh. 2.)

Accordingly, Plaintiff is entitled to reasonable attorney's fees and costs.

Reasonableness of the Hourly
Rates

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court [...]." (Ibid.) "[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) "Courts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof." (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247, citation omitted.)

Plaintiff's counsels' fees and experience are summarized as follows:

Name

Position

Years of Experience

Hourly Rate

Jordan G. Cohen

Shareholder

10+

\$560

Bobby C. Walker

Attorney

Since 2018

\$440

Andrew Dickson

Attorney

4

\$440

Shayna Elian

Associate

1

\$425

David Gomez

Paralegal

-

\$195

Destiny Olvera

Paralegal

-

\$195

Jessica Caro

Paralegal

-

\$195

Katherine Carreño

Paralegal

-

\$195

Rob Alter

Paralegal

-

\$195

Clarence Serrano

Paralegal

-

\$195

Marbely Gutierrez

Paralegal

-

\$195

Melanie Say

Paralegal

-

\$195

Isabel Garcia

Paralegal

-

\$195

Virginia Walls

Paralegal

-

\$195

(Cohen Decl., ¶¶ 11-15.)

Plaintiff contends that the hourly rates are reasonable and supported by prior trial court orders.

As Defendant does not oppose the rates requested by Plaintiff, the Court finds the requests reasonable based on the declaration and supporting evidence.

Reasonableness of the Fees

The Court is vested with discretion to determine which claimed hours were reasonably spent and what an attorney's reasonable hourly rate is. (*Dover Mobile Estates v. Fiber Form Products, Inc.* (1990) 220 Cal.App.3d 1494, 1501; see also *Flannery v. California Highway Patrol* (1987) 61 Cal.App.4th 629, 644 ["We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court."].) "As the plain wording of section 1794, subdivision (d) makes clear, the trial court is 'to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.'" (*Mikhaeilpoor*, supra, 48 Cal.App.5th at p. 247, citation omitted.) "[C]ounsel's time records [should be used] as the starting point for [a court's] lodestar determination." (*Horsford v. Board of Trustees of CSU* (2005) 132 Cal.App.4th 359, 397.) In assessing a motion for attorney's fees, "[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.)

Plaintiff argues

that the 72.3 hours billed by attorneys and paralegals in this matter were reasonably incurred for this nearly 24-month litigation. Plaintiff provides a billing statement. (Cohen Decl., Exh. 14.)

In opposition, Defendant argues for a reduction of 41.8 billed hours for a total reduction of \$14,808.35 in fees. Defendant argues that certain hours are unreasonably incurred and therefore seeks reductions of the following: pre-litigation work, templated complaint package, templated discovery notices, templated discovery responses, templated memorandum of costs, templated fee motion, excessive client communications, excessive time to review, and paralegal and attorney clerical time.

First, Defendant

seeks a 1.1 hour reduction for a templated complaint package and 2.7 hour reduction for pre-litigation work. Upon review, the Court finds the pre-litigation work and time billed for the complaint reasonable. As argued by Plaintiff, pre-litigation fees are recoverable under the Song-Beverly Act. (Civ. Code, § 1794, subd. (d) [includes fees "reasonably incurred by the

buyer in connection with the commencement and prosecution of such action.”].)

Defendant next seeks a 1.8 hour reduction based on Plaintiff's templated discovery responses and a 4.1 hour reduction based on templated written discovery and PMQ deposition notices. Defendant argues that Defendant's discovery requests are standard between lemon law cases and therefore do not require the amount of time billed. As to the templated written discovery and PMQ deposition notices, Defendant argues that Plaintiff's requests are identical to requests in other cases with only changes to the caption and vehicle. Defendant shows that after drafting the templated PMQ notice, Plaintiff billed twice more for updating the same notice. In reply, Plaintiff notes that he had to respond to 41 specially-prepared interrogatories, 29 requests for production of documents, 22 requests for admission, and 26 form interrogatories.

The Court agrees that time spent to update an identical deposition notice is unreasonable and deducts 0.3 hours on 9/12/2025 by Carreno. The Court reduces 0.5 hours by Dickson on 1/16/2024 for excessive review of templated discovery requests and 1 hour on 1/11/2024 for excessive drafting of templated written discovery requests. This is a total reduction of \$718.50.

Defendant next seeks to reduce 10.5 hours based on templated motions to compel further discovery responses. Defendant argues that the motions are identical to prior motions by Plaintiff and that the motions were unnecessary as the issue proceeded to an informal discovery conference. The Court reduces 0.3 hours on 7/24/2024 by Dickson for excessive and duplicative review for meeting and conferring. The Court reduces 0.5 hours by Olvera on 8/23/2024 for duplicative drafting of a joint status report. The Court reduces 1 hour of Dickson's time between March 12, 2024 and April 17, 2024 for unreasonable time spent on drafting templated documents. This is a total reduction of \$669.50.

Defendant requests that the Court reduce 1.6 hours billed as to this motion as well as deduct all 5.6 hours of the anticipated fees. (See Cohen Decl., ¶¶ 28-29.) Plaintiff submits a supplemental declaration stating that they billed 2.1 hours in opposing and replying to Defendant's motion to tax costs and 4.1 hours to reply to the instant motion. (See Cohen Supp. Decl., ¶¶ 7-8.) Given Plaintiff's counsel's over ten years of experience in lemon law litigation, the Court finds that the amount of time spent on opposing Defendant's motion to tax costs and reviewing and replying to Plaintiff's

motion for attorney's fees is unreasonably excessive. The Court deducts 2 hours at Cohen's rate of \$560. This is a total reduction of \$1,120.

Defendant contends that 12.8 hours should be deducted as time by attorneys and paralegals for clerical work. Defendant notes that Plaintiff's counsels and paralegals billed for "serving, "receipt and review," "saved," and "calendared." (Cohen Decl., Exh. 14.) The Court agrees. (See *Missouri v. Jenkins by Agyei* (1989) 491 U.S. 274, 288 n. 10 ["purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them."].) The Court deducts 0.3 hours by Dickson on 1/10/2024 for a calendar audit, 0.2 hours for case audit by Dickson on 12/20/2024, 0.1 for calendaring by Walls on 2/9/2024, 0.5 hours for serving, sending for efilng, and saving by Olvera on 8/23/2024, and 1 full hour of paralegal time (\$195) for hours billed filing documents. This is a total reduction of \$447.

The Court does not reduce time for the templated memorandum of costs or alleged excessive client communications as the Court finds that the fees were reasonably incurred. The Court does not reduce time for over-reviewing of repair history on the basis that it may be addressed through a percentage deduction based on overstaffing.

Finally, Defendant argues that there are non-compensable inefficiencies resulting from the excessive number of timekeepers. "[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 39.) There are 14 timekeepers in this matter—4 attorneys and 10 paralegals. As raised by Defendant, this led to inefficiencies such as attorneys and paralegals billing time to review what a prior individual had done. For example, while Walker performed work towards the attorney's fees motion, including an audit of billing records, a different attorney subsequently billed 0.3 hours to review the case file as to billing for purposes of writing a reply. (Cohen Supp. Decl., ¶ 8.) Additionally, in August of 2025, multiple attorneys reviewed the same documents for purposes of drafting and revising the same documents. Further, two different paralegals, on 12/31/2025, identically billed for "[r]eceipt and review of - Conformed Memorandum of Costs to ensure filing acceptance." The Court, in light of Plaintiff's reply arguments that the overstaffing was not as severe as in Defendant's cited authorities, finds a five percent reduction reasonable.

Based on the foregoing, the Court reduces attorney's fees by \$2,955 for a total of \$28,365. The Court reduces 5% from this amount for a total further reduction of \$1,418.25 due to inefficiencies from overstaffing.

Accordingly, Plaintiff's motion for attorney's fees is GRANTED in the amount of \$26,946.75.